

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 08/07/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0001920

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

PLAINTIFF: IVAN ARAUJO

vs.

DEFENDANT: CITY AND COUNTY OF
SAN FRANCISCO, A PUBLIC ENTITY, ET
AL

NATURE OF PROCEEDINGS: MOTION – SUMMARY JUDGMENT

RULING

This matter is continued for one week to August 21, 2026, for hearing in this department at 1:30 pm.

Parties must comply with Marin County Superior Court Local Rules, Rule 2.10(A), (B), which provides that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 2.10(B), the tentative ruling shall become the order of the court.

IT IS ORDERED that evidentiary hearings shall be in-person in Department L. For routine appearances, the parties may access Department L for video conference via a link on the court website. Kindly turn your camera on when your case is called and make sure the party or lawyer making the appearance is properly identified on the screen.

FURTHER ORDERED that the parties are responsible for ensuring that they have a good connection and that they are available for the hearing while using the virtual remote courtroom. If the connection is inadequate, the Court may proceed with the hearing in the party's absence. If it is determined that you are diving your car during the hearing, you will be removed from the virtual courtroom. (Yes, this happens).

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 08/07/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0003730

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

PLAINTIFF: NANCY DREW, ET AL

vs.

DEFENDANT: MARY CROWLEY

NATURE OF PROCEEDINGS: MOTION – JUDGMENT ON THE PLEADINGS

RULING

Defendant Mary Crowley’s (“Defendant”) Motion for Judgment on the Pleadings to Nancy Drew, by and through her Guardian Ad Litem, Robert Drew’s (“Plaintiff”) Complaint for Financial Elder Abuse is GRANTED with leave to amend.

REQUEST FOR JUDICIAL NOTICE

Plaintiff’s Request for Judicial Notice of the First Amended Petition filed in In re Estate of Nancy Drew, Marin County 12 Superior Court Case No. PR0001434 is GRANTED.

Defendant’s Requests for Judicial Notice of the Probate Petition (“Petition”) filed on August 25, 2025, In re. the Matter of the Amended and Restated Nancy B. Drew Trust, (Case No. PR0001434), is GRANTED.

Defendant’s request for Judicial Notice of the Death Certificate or official record evidencing the date of death of the decedent whose rights are purportedly asserted in the Complaint is GRANTED.

The request for Judicial Notice of the Letter to Meet and Confer is DENIED.

LEGAL STANDARD

A motion for judgment on the pleadings “may only be made on one of the following grounds: If the moving party is a plaintiff, that the complaint states facts sufficient to constitute a cause or causes of action against the defendant and the answer does not state facts sufficient to constitute a defense to the complaint.” (Code Civ. Proc., § 438, subd. (c)(1)(A).)

Like a demurrer, a motion for judgment on the pleadings attacks defects disclosed on the face of the pleadings or by matters that may be judicially noticed. (*Alameda County Waste Management*